

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVMZmSEZTMlpuODhJVtZ4ZE1FZz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ZACCHAEUS ZOMAYA,

Petitioner

VS.

MADINAH RUMION,

Respondent

) Case Number: FPT-24-378508

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Zacchaeus Zomaya (Father) and Respondent Madinah Rumion (Mother). The minor child subject to this proceeding is Rheya Zomaya (DOB: 04/11/22).
- 2) On September 11, 2025, following 4 days of trial on Mother's Request for Domestic Violence Restraining Order (DVRO), the Court granted a 5-year DVRO against Father. The parties' minor child is listed as a protected party. Mother has sole legal and sole physical custody of the minor child and Father has parenting time with the minor child two times per week for two hours at a time.
- 3) On October 20, 2025, Mother filed a Request for Order seeking the Court's permission to relocate to the State of Florida with the minor child.
- 4) On January 20, 2026, Father filed a Responsive Declaration in opposition to Mother's requests.
- 5) On January 29, 2026, the matter was heard and the Court issued the following orders:
 - a. Matter set for trial setting on April 6, 2026, in Department 405

- b. Related case no. FDV-25-818277 is hereby consolidated with case no. FPT-24-378508. Case no. FPT-24-378508 shall be the lead case for all future filings.
- c. Father's request for joint legal and joint physical custody is DENIED.
- d. Father's request for unsupervised visitation is DENIED.
- e. The Court does not find any basis to modify the existing orders given that Father has not begun the court-ordered Batterer's Intervention Program.

6) On February 4, 2026, Father filed a Request for Order renewing his request to modify child custody and visitation. Matter was set for Readiness on March 9, 2026.

7) On March 9, 2026, the Court referred the parties to FCS Mediation to occur on April 2, 2026 and set a review hearing on April 23, 2026.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) Father's request to modify child custody to joint legal and joint physical custody is DENIED. While the Court understands Father commenced a 52-week Batterer's Intervention Program, the program has not yet been completed, which is a prerequisite pursuant to California Family Code section 3044.

3) Father's request to modify the existing parenting plan is GRANTED. Commencing, April 23, 2026, Father's parenting time with the minor child shall be moved to UNSUPERVISED visits. Father shall have parenting time with the minor child shall be as follows:

- a. The 1st, 3rd and 4th weekends of each month on Saturdays and Sundays from 10:00 a.m – 4:00 p.m. (*Father's first unsupervised visit to occur on Saturday, April 25, 2026*).
- b. In addition, Father may have parenting time with the minor child each Wednesday from 6:00 p.m. – 7:30 p.m., commencing on Wednesday, April 29, 2026.
- c. All exchanges shall occur at the Waller Police Station located at 1899 Waller Street, San Francisco.

- 1 4) The Request for Order filed by Father, on February 4, 2026, is considered fully adjudicated. The
2 party's trial regarding Mother's request to move-away (filed October 20, 2025) to the State of
3 Florida with the minor child is confirmed, as previously calendared by Department 405, to occur
4 on June 24, 2026-June 25, 2026. Parties shall comply with Department 405's previously issued
5 trial orders.
- 6 5) All prior orders, not in conflict with the orders made herein, shall remain in full force and effect.
- 7 6) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

NANCY LIMA,

Petitioner

VS.

XAVIER AGUIRRE,

Respondent

) Case Number: FPT-25-378752

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties to this proceeding are Petitioner/Mother, Nancy Lima, and Respondent/Father, Xavier Aguirre. There is one minor child subject to this proceeding named Elizabeth Paige Aguirre (12/22/15).
- 2) On February 11, 2026, Father filed a Request for Order seeking initial orders for:
 - a. Joint Legal and Joint Physical Custody of the minor child.
 - b. Parenting time each week from Friday after school to Monday morning to school.
- 3) On March 16, 2026, the Court held a readiness hearing and referred the parties to FCS Mediation to occur on April 14, 2026 and set a return hearing on April 23, 2026.
- 4) Mother did not file an opposition to Father's motion. *(The Court reviewed this case on April 9, 2026. The Court notes that an untimely Responsive Declaration was filed on April 15, 2026. The Court will not consider this untimely filing.)*

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) Father's unopposed request for Joint Legal and Joint Physical custody is GRANTED. Both parents shall exercise Joint Legal and Joint Physical custody of the minor child.
- 3) Father shall have parenting time with the minor child on the 1st, 2nd and 4th weekends of each month from Friday after school until Monday morning drop off at school.
- 4) Mother shall have care and custody of the minor child at all other times.
- 5) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MAYELA GUTKNECHT,

Petitioner

VS.

MANUEL SANCHEZ MEDINA,

Respondent

) Case Number: FMS-26-387618

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: RENEWAL OF PASSPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Mayela Gutknecht and Respondent Manuel Sanchez Medina.
- 2) On 2/10/26, Petitioner filed a Petition for Custody and Support of Minor Children, which lists minor child Daisy Gutknecht-Medina (DOB: 3/19/18). Petitioner indicates that Petitioner and Respondent have signed an attached voluntary declaration of parentage or paternity.
- 3) On 2/10/26, Petitioner filed a Request for Order seeking “renewal of passport” to which a copy of the minor child’s expired passport is attached. Petitioner did not include facts in support of the Request for Order.
- 4) There is no Proof of Service on file indicating that the Petition for Custody and Support of Minor Children filed 2/10/26 or Request for Order filed 2/10/26 were served on Respondent.
- 5) Respondent did not file a Response or Responsive Declaration.

B. Findings and Order

- 1) The Court finds Petitioner failed to serve the Petition for Custody and Support of Minor Children filed 2/10/26 and Request for Order filed 2/10/26 as required by the Code of Civil Procedure.

- 2) As such, this matter is **continued to 6/19/26 at 9 AM in Dept. 403** for lack of service.
- 3) Petitioner shall ensure proper service is effectuated prior to the next hearing date.
- 4) In addition, Petitioner shall file a supplemental declaration explaining why Petitioner seeks the Court's intervention in the minor child's passport renewal process.
- 5) Petitioner is encouraged to seek assistance from the ACCESS Center if needed. Information for contacting the ACCESS Center can be found here: <https://sf.courts.ca.gov/access-legal-self-help-center>.
- 6) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ERICA PLAM,

Petitioner

VS.

ERIC HUDSON PLAM,

Respondent

) Case Number: FDI-22-796258

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, OST TO HEARING RE : SALE OF
RENO HOME

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Erica Plam (Mother) and Respondent Eric Hudson Plam (Father).
- 2) On 10/7/25, the Court issued a Final Statement of Decision, which includes disposition of the Reno property located at 712 S. Arlington Avenue Reno, Nevada (see Page 7) and orders related to the Reno property (see page 23).
- 3) On 3/30/26, Mother filed an ex parte application seeking an order shortening time for hearing on a Request for Order regarding enforcement of 10/7/25 Statement of Decision. Mother requests the Court: (a) compel the sale of the Reno property within 10 days; (b) appoint Clara Tate as the listing agent, unless the parties agree otherwise in writing; (c) permit the listing agent to determine the listing price; (d) order Father to cooperate to prepare, market, and sell the Reno property (i.e., signing documentation, vacating the property, and permitting access to the property); (e) appoint an elisor to sign documentation on Father's behalf if Father fails to cooperate; (d) order the sale proceeds to be deposited into the IOTOLA account of Rubin &

1 Levavi; and (e) reserve jurisdiction over all issues relating to the sale, escrow, and distribution of
2 proceeds.

3 4) On 3/30/26, the Court denied Mother's request for an order shortening time and set the matter for
4 regular hearing on 4/23/26.

5 5) On 4/10/26, Father filed a Responsive Declaration in opposition to Mother's Request for Order.
6 Father asserts that his buyout right is still active under the Final Statement of Decision because:

7 (a) the Final Statement of Decision establishes a sequential process wherein the appraisal is a
8 condition precedent to the buyout period; (b) no licensed appraisal was completed within the
9 initial 30-day window by either party; and (c) Mother obstructed the appraisal process. Father
10 requests the Court enforce the buyout provision by ordering that Father's buyout of Mother's
11 community property interest be completed within 30 days of the hearing, at a price of
12 \$139,718.07, which Father alleges is Mother's 50% share of net community property equity
13 based on the appraised value of \$705,000 and the outstanding mortgage balance of \$425,563.86.
14 Father also requests the Court order distribution of the San Francisco home sale proceeds
15 currently held in Mother's attorney's IOLTA account consistent with the Final Statement of
16 Decision and the Court's prior orders, including payment of the \$56,201.00 owed to Father.
17 Father seeks \$4,000 in Family Code section 271 sanctions against Mother. Attached as Exhibit B
18 is an appraisal report dated 2/24/26 showing the value of the Reno property is \$678,412 and
19 attached as Exhibit C is an appraisal report dated 3/25/26 showing the value of the Reno property
20 is \$705,000.

21 6) On 4/15/26, Mother filed a Reply Declaration asserting that she does not agree to Father's
22 proposed buyout because she believes the home is worth more than the appraisal value. It is
23 Mother's position that the Court's orders do not require that she accept Father's buyout of her
24 interest in the Reno property. Mother requests the Court compel the sale of the Reno property or
25 permit only a buyout opportunity that is mutual (i.e., provide Mother the opportunity to buyout
26 Father's interest in the Reno property as well).

27 **B. Findings and Order**

28 1) The Final Statement of Decision issued 10/7/25 states, "The Reno home located at 712 S.
29 Arlington Avenue, in Reno, Nevada, will be appraised within 30 days of the date of the Final

Statement of Decision. If the Respondent wishes to buy the Petitioner's community property interest in the Reno home, he will have 45 days from the date of the Final Statement of Decision to pay Petitioner her share of the community property equity. All furniture purchased prior to the date of separation (3/20/22) shall be independently appraised and the Respondent shall pay the Petitioner her share of the value of the furniture within 30 days of the appraisal." See page 7.

- 2) It is undisputed that no licensed appraisal was completed within 30 days of the date of the Final Statement of Decision by either party.
- 7) However, Father submitted documentary evidence of two appraisals attached as Exhibits B and C to his Responsive Declaration filed 4/10/26. Attached as Exhibit B is an appraisal report dated 2/24/26 showing the value of the Reno property is \$678,412 and attached as Exhibit C is an appraisal report dated 3/25/26 showing the value of the Reno property is \$705,000.
- 8) Mother did not submit documentary evidence of the value of the Reno property to substantiate her position that the property is worth more than the value shown by Father's appraisals.
- 9) Father also submitted documentary evidence of the mortgage balance attached as Exhibit F to his Responsive Declaration filed 4/10/26. The outstanding principal balance on the mortgage is \$425,563.86 according to this mortgage statement dated 3/16/26.
- 10) Finally, Father submitted documentary evidence of an appraisal of the personal property contained in the Reno property as Exhibit M to his Responsive Declaration filed 4/10/26, which states, "My consensus is that the personal property in this estate would most likely garnish returns between \$3,900 to \$4,400."
- 11) Based on the foregoing, the Court will enforce the buyout provision of the Final Statement of Decision issued 10/7/25 as follows:
- 12) The Court finds good cause adopt the appraisal report dated 3/25/26 showing the value of the Reno property is \$705,000 (i.e., Exhibit C of Father's Responsive Declaration filed 4/10/26).
- 13) The Court further finds good cause to adopt Father's calculation of Mother's community interest in the Reno property for a buyout price of \$139,718.07 ($\$705,000$ (appraisal value) - $\$425,563.86$ (mortgage balance) = $\$279,436.14/2 = \$139,718.07$).

1 14) Father shall pay this balance to Mother in full by 4/30/26. Father is permitted to pay these funds
2 directly to Mother or elect to disperse these funds from his portion of the net sale proceeds of the
3 San Francisco property.

4 15) Otherwise, Father has 30 days to complete the buyout process and transfer the mortgage and title
5 to his name only.

6 16) The Court further finds good cause to order Father to pay Mother an additional \$2,200 as an
7 equalizing payment for the personal property contained in the Reno property. Father shall pay this
8 balance to Mother in full by 4/30/26. Father is permitted to pay these funds directly to Mother or
9 elect to disperse these funds from his portion of the net sale proceeds of the San Francisco
10 property.

11 17) All other requests related to the funds from the sale of the parties' San Francisco property held in
12 Mother's attorney's IOLTA account are beyond the scope of this hearing.

13 18) Father's request for \$4,000 in sanctions is DENIED as the Court finds both parties' conduct
14 contributed to the delay in resolution of this issue.

15 19) Counsel for Father shall prepare the Findings and Order After Hearing.

16 20) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
17 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
18 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
19 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
20 proposed order after hearing directly to the court. Failure to submit the order after hearing within
21 10 days may allow the other party to prepare a proposed order and submit it to the court in
22 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RYAN SMITH,

Petitioner

VS.

URARAT RUEANKHAM,

Respondent

) Case Number: FDI-22-797274

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME);
DECLARATION REGARDING NOTICE AND SERVICE OF REQUEST FOR TEMPORARY
EMERGENCY (EX PARTE) ORDERS

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties to this action are Petitioner/Father, Ryan Smith and Respondent/Mother, Urarat Rueankham. The parties have one minor child named Katherine Betty Smith (09/06/22).
- 2) On April 13, 2026, Father filed an ex parte application seeking emergency orders for custody and visitation. Father alleges Mother is going to abduct the child to the Country of Thailand. The Court denied Father's emergency requests and set the matter for expedited hearing on April 23, 2026. The Court ordered Father to serve Mother with his request no later than April 15, 2026.
- 3) On 4/17/26, Father filed a Proof of Personal Service.
- 4) On 4/17/26, Mother filed a Responsive Declaration.
- 5) On 4/21/26, Mother filed an amended Responsive Declaration.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.

2) **The parties are ordered to appear.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SCOTT LAUGHLIN,

Petitioner

VS.

CAROLINE SELLKE,

Respondent

) Case Number: FDI-24-800678

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER ATTORNEY FEES AND COSTS, A. AN ORDER COMPELLING
RESPONDENT (WIFE) TO SUPPLEMENT HER RESPONSE AND DOCUMENTS TO
PETITIONER'S (HUSBAND'S) "DEMANDING FOR IDENTIFICATION, PRODUCTION AND
INSPECTION OF DOCUMENTS, SET NO. ONE " REQUEST FOR ADMISSIONS, SET NO ONE,"
AND "FORM INTERROGATORIES - GENERAL. SET NO ONE" AND B. ATTORNEY'S FEES IN
THE AMOUNT OF \$12000, PAYABLE BY WIFE AS A SANCTION PURSUANT TO CODE OF
CIVIL PROCEDURE

TENTATIVE RULING

On the Court's own motion, this matter is continued to 6/5/26 at 1:30 PM in Dept 405(A) to be heard on
the Court's family law discovery calendar. The hearing will take place in room 403. **No appearances are
required on 4/23/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KENT PENWELL,

Petitioner

VS.

REAGAN PENWELL,

Respondent

) Case Number: FDI-25-801720

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: MOTION TO DISCHARGE CONTEMPT MOTION FILED ON
1/2/2026; ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT; ORDER TO SHOW
CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Kent Penwell (Father) and Respondent Reagan Penwell (Mother). They share two minor children: Stella (age 10) and Kent (age 9).
- 2) On for hearing on 4/23/26 are the following three motions:
 - a. Mother's Order to Show Cause and Affidavit for Contempt filed 1/2/26, alleging Father violated the Domestic Violence Temporary Restraining Order (DVTRO). Mother concurrently filed a Memorandum of Points and Authorities, supportive attorney declaration, and Income and Expense Declaration on 1/2/26.
 - b. Mother's Order to Show Cause and Affidavit for Contempt filed 1/23/26, alleging Father violated the Standard Family Law Restraining Orders (ATROS) and the DVTRO.
 - c. Father's Request for Order filed 2/6/26 seeking to discharge Mother's Order to Show Cause and Affidavit for Contempt filed 1/2/26, which alleged Father violated Domestic

Violence Temporary Restraining Orders (DVTROs). Father concurrently filed a Memorandum of Points and Authorities.

- 3) On 3/11/26, Mother filed Respondent's Notice of Errata and Resubmission of the Attached Corrected Order to Show Cause and Affidavit of Contempt with Attachments (Initially Filed on January 23, 2026). Mother concurrently filed an amended supportive attorney declaration on 3/11/26, which is entitled "the Amended Declaration of Kelly Fitzgerald Canby ISO Respondent's Corrected Supplemental Request for Order Seeking Issuance of Order to Show Cause re Contempt."
- 4) On 4/10/26, Mother filed a Responsive Declaration in opposition to Father's Request for Order filed 2/6/26. Mother concurrently filed a Memorandum of Points and Authorities on 4/10/26.
- 5) On 4/16/26, Mother filed a Substitution of Attorney indicating that she is no longer represented by attorney Roger B. Frederickson and is now represented by attorney Charles H. Delacey.
- 6) On 4/16/26, Father filed Petitioner's Objections to and Request to Strike Portions of Respondent's Contempt Motions.
- 7) On 4/16/26, Father filed a Reply Declaration in support of his Request for Order filed 2/6/26 seeking to discharge Mother's Order to Show Cause and Affidavit for Contempt filed 1/2/26.

B. Findings and Order

- 1) As a threshold issue, the Court SUSTAINS Father's objections to and GRANTS Father's request to strike Exhibit 7 of the Amended Declaration of Kelly Fitzgerald Canby ISO Respondent's Corrected Supplemental Request for Order Seeking Issuance of Order to Show Cause re Contempt filed on 3/11/26. The Court will consider Exhibit 7 stricken.
- 2) In proceeding to the merits of the motion to discharge, the Court focuses on the elements required for a finding of contempt which are: (1) a valid court order, (2) knowledge of the order, and (3) willful violation of/ noncompliance with the order.
- 3) Here, through contempt actions filed on 1/2/26 and 1/23/26, Mother alleges Father violated the DVTRO and ATROS by confiscating her vehicle to deny her transportation, sending harassing communications to Mother and the children's nanny and babysitter, inquiring about Mother's whereabouts, surveilling the family residence, and taking actions such as redirecting his income away from a joint account, resulting in severe financial hardship for Mother. Mother states she

1 never provided consent for the funds to be redirected and she believes it was done to interfere
2 with her ability to obtain the necessities of life and to exercise coercive control over her thereby
3 disturbing her peace.

- 4 4) The first two elements of contempt are undisputed (i.e., there was a valid DVTRO of which
5 Father had knowledge and the ATROs apply).
- 6 5) As such, it is Mother's burden to prove beyond *a reasonable doubt* (i.e., more likely than
7 not) that Father willfully violated these orders.
- 8 6) The Court finds Mother did not meet her burden as (a) this Court is not aware of property control
9 orders giving Mother exclusive use and possession of the car at issue, which Father alleges is
10 community property; (b) the DVTRO was extended on 10/29/25 to include an order permitting
11 both parties to contact the children's nanny and there were no orders made regarding
12 communication with a babysitter; (c) the alleged incidence of surveillance (i.e., when Father
13 showed up at the family residence) occurred before the DVTRO was in place; and (d) Father is
14 under no obligation to deposit his post-separation earnings in a joint account.
- 15 7) Based on the foregoing, pursuant to Penal Code section 1385 and in the furtherance of justice, the
16 Court finds good cause to GRANT Father's Request for Order filed 2/6/26 seeking to discharge
17 Mother's Order to Show Cause and Affidavit for Contempt filed 1/2/26 and DISCHARGE
18 Mother's 1/23/26 Order to Show Cause and Affidavit for Contempt on the Courts own motion.
- 19 8) While the Court finds Father's conduct does not rise to the level of contemptible conduct, the
20 Court is concerned that Father's conduct is neither productive nor in the children's best interest.
21 Father is admonished to focus on the children. Neither party shall use the children as messengers
22 between them.
- 23 9) Counsel for Father shall prepare the Findings and Order After Hearing.
- 24 10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
25 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
26 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
27 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
28 proposed order after hearing directly to the court. Failure to submit the order after hearing within
29

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALENA E. CALDER,

Petitioner

VS.

LUDWIG C. CALDER,

Respondent

) Case Number: FDI-25-801764

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: STATUS ONLY DISSOLUTION; REQUEST FOR ORDER STATUS
ONLY DISSOLUTION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Alena Calder (Mother) and Respondent Ludwig Calder (Father). They share six minor children: Elias (7/1/10), Liora (10/7/11), David (10/25/14), Tanya (8/5/17), Charles (1/16/19), and Sariel (3/27/22).
- 2) On 8/1/25, Mother filed a Petition for Dissolution. In her pleadings, Mother indicates the date of marriage is 10/17/09 and date of separation is 8/1/25, for a marriage of 14 years and 8 months.
- 3) On 1/22/26, Mother filed a Request for Order seeking bifurcation of trial and termination of marital status. Attached to Mother's Request for Order is form FL-315 (Request for Separate Trial). Mother concurrently filed a Memorandum of Points and Authorities. This matter was set for hearing on 4/16/26.
- 4) On 1/22/26, Mother filed a Proof of Service indicating her 1/22/26 Request for Order was served on Father by e-mail on 1/22/26.

- 1 5) On 1/22/26, Mother filed a Declaration Regarding Service of Declaration of Disclosure and
2 Income and Expense Declaration stating that Mother's Preliminary Declaration of Disclosure was
3 served on Father by e-mail on 1/16/26.
 - 4 6) Father did not file a Responsive Declaration.
 - 5 7) On 1/30/26, Mother filed a second Request for Order seeking bifurcation of trial and termination
6 of marital status. Attached to Mother's Request for Order is form FL-315 (Request for Separate
7 Trial). Mother concurrently filed a Memorandum of Points and Authorities.
 - 8 8) On 1/30/26, Mother filed a Proof of Service indicating her 1/30/26 Request for Order was served
9 on Father by e-mail on 1/22/26.
 - 10 9) On 4/13/26, Father filed a filed a Declaration Regarding Service of Declaration of Disclosure and
11 Income and Expense Declaration stating that Father's Preliminary Declaration of Disclosure was
12 served on the other party's attorney by e-mail on 4/12/26.
 - 13 10) On 4/14/26, Father filed a Responsive Declaration in opposition to Mother's Request for Order,
14 which states he does not consent to bifurcation and termination of marital status unless the
15 conditions set forth in Family Code section 2337 are imposed. However, Father asserts that he
16 and the children may face eviction if bifurcation and termination is granted because his father-in-
17 law who is his landlord threatened a lawful detainer action. Father states he was recently
18 diagnosed with Follicular Lymphoma and bifurcation and termination could affect his Medi-Cal
19 eligibility. Father requests Family Code section 271 sanctions for Mother's pattern of non-
20 compliance and failure to return "original identity documents" as ordered on 10/23/25.
 - 21 11) On 4/14/26, Father filed a supplemental declaration asserting that Mother's Request for Order
22 was incomplete as it lacked sufficient facts to prove that bifurcation and termination of marital
23 status won't prejudice Father. Father alleges Mother failed to meet and confer regarding
24 bifurcation and termination of marital status.
 - 25 12) On 4/14/26, Father filed Respondent's Exhibit Packet in Support of Responsive Declaration and
26 Supplemental Declaration. Father attached a letter dated 12/3/25 that shows the landlord intends
27 to initiate a lawful detainer action against Father for unpaid rent.
 - 28 13) On 4/14/26, Father filed an Income and Expense Declaration.
- 29

1 14) The Court notes that related case no. FDV-25-801764 is set for trial in Dept. 403 on 7/28/26,
2 7/29/26, 7/30/26, and 8/4/26.

3 **B. Findings and Order**

- 4 1) Public policy favors bifurcation and termination of marital status.
- 5 2) Since denial of such a request would conflict with public policy, the opposing party must
6 show compelling evidence that actual prejudice would result; procedural objections do not
7 constitute compelling evidence. (See *Gionis v. Sup.Ct.* (1988) 202 CCA3d 786, 788-90).
- 8 3) Based on the pleadings filed with the Court and signed under penalty of perjury, the Court finds
9 that Father did not meet this burden. The Court further finds that:
- 10 a. Mother filed a Petition for Dissolution on 8/1/25.
- 11 b. Under Family Code section 2339(a), the Court first acquired jurisdiction over Father
12 when Father was served with Mother's Petition and Summons on 8/7/25.
- 13 c. Father did not file a Response and Request for Dissolution.
- 14 d. Within the Petition, Mother indicates that both parties were residents of California for at
15 least six months and of San Francisco County for at least three months immediately
16 preceding the filing of the Petition.
- 17 e. Within the Petition, Mother requests a divorce based on irreconcilable differences.
- 18 f. On 1/22/26, Mother filed a Declaration Regarding Service of Declaration of Disclosure
19 and Income and Expense Declaration stating that Mother's Preliminary Declaration of
20 Disclosure was served on Father by e-mail on 1/16/26.
- 21 g. On 4/13/26, Father filed a Declaration Regarding Service of Declaration of
22 Disclosure and Income and Expense Declaration stating that Father's Preliminary
23 Declaration of Disclosure was served on the other party's attorney by e-mail on 4/12/26.
- 24 h. In form FL-315 (Request for Separate Trial), which Mother attached to her 1/30/26
25 Request for Order, Mother responded "NONE" to the prompt "All pension or retirement
26 plans in which the community has an interest are listed below." Father did not allege any
27 pension or retirement plans in which the community has an interest in his responsive
28 pleadings. The Court therefore finds that there are no retirement plans that need to be
29 joined in this action under Family Code section 2337(d).

- 1 4) Based on the foregoing, Mother's request to bifurcate and terminate the parties' marital status is
2 GRANTED. Each party is restored to their previous single status as of 4/23/26. The Court finds
3 that this termination date meets the requirement set forth in Family Code section 2339(a).
- 4 5) As set forth in the attached Bifurcation of Status of Marriage (FL-347), the protections of Family
5 Code section 2337(c)(1)-(6) shall apply.
- 6 6) The parties are reminded that despite the termination of their marital status the Standard Family
7 Law Restraining Orders set forth in the Summon continue to apply to both parties per Family
8 Code section 233(a).
- 9 7) The Court's jurisdiction to adjudicate all remaining issues in this dissolution matter is reserved.
- 10 8) Counsel for Mother shall prepare the Findings and Order After Hearing and shall also submit a
11 judgment terminating marital status and reserving the Court's jurisdiction over all other issues
12 (with an FL-347 that mirrors the terms of the FL-347 attached hereto).
- 13 9) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
14 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
15 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
16 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
17 proposed order after hearing directly to the court. Failure to submit the order after hearing within
18 10 days may allow the other party to prepare a proposed order and submit it to the court in
19 accordance with CA Rules of Court, Rule 5.125(d).
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PETITIONER: ALENA E. CALDER	CASE NUMBER:
RESPONDENT: LUDWIG C. CALDER	FDI - 25 - 801764

BIFURCATION OF STATUS OF MARRIAGE OR DOMESTIC PARTNERSHIP

ATTACHMENT TO ☐ JUDGMENT (FL-180) ☒ FINDINGS AND ORDER AFTER HEARING (FL-340)

The court grants the request of ☒ petitioner ☐ respondent to bifurcate and grant a separate trial on the issue of the dissolution of the status of the marriage or domestic partnership apart from other issues.

Date marital or domestic partnership status ends (specify): 4/23/26

THE COURT FINDS

1. A preliminary declaration of disclosure with a completed schedule of assets and debts and income and expense declaration has been served on the nonmoving party, or the parties have stipulated in writing to defer service of the preliminary declaration of disclosure until a later time.
2. Each retirement or pension plan of the parties has been joined as a party to the proceeding for dissolution unless joinder is precluded or made unnecessary by applicable law.

THE COURT ORDERS

3. a. To preserve the claims of each party in all retirement plan benefits on entry of judgment granting a dissolution of the status of the marriage or domestic partnership, the court makes one of the following orders for each retirement plan in which either party is a participant:
 - (1) A final domestic relations order or qualified domestic relations order under Family Code section 2610 disposing of each party's interest in retirement plan benefits, including survivor and death benefits.
 - (2) An interim order preserving the nonemployee party's right to retirement plan benefits, including survivor and death benefits, pending entry of judgment on all remaining issues.
 - (3) A provisional order on *Pension Benefits—Attachment to Judgment* (form FL-348) incorporated as an attachment to the judgment of dissolution of the status of marriage or domestic partnership (*Judgment (Family Law)* (form FL-180)). This order provisionally awards to each party a one-half interest in all retirement benefits attributable to employment during the marriage or domestic partnership.

b. Name of plan:

N/A

Type of order attached

3a(1) 3a(2) 3a(3)

☐ ☐ ☐

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☐ See attachment 3b for additional plans.

- c. The moving party must promptly serve on the retirement or pension plan administrator a copy of any order entered under items a and b above and a copy of the judgment granting dissolution of the status of the marriage or domestic partnership (form FL-180).
4. Jurisdiction is reserved for later determination of all other pending issues in this case.
5. The court makes the following additional orders as conditions for granting the severance on the issue of dissolution of the status of marriage or domestic partnership. In the case of the moving party's death, the order continues to be binding on that moving party's estate and will be enforceable against any asset, including the proceeds thereof, to the same extent that these obligations would have been enforceable before the person's death.
 - a. ☒ **Division of property**
 The ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any ☒ taxes, ☒ reassessments, ☒ interest, and ☒ penalties payable by the other party in connection with the division of the community estate that would not have been payable if the parties were still married or domestic partners at the time the division was made.

PETITIONER: ALENA E. CALDER	CASE NUMBER:
RESPONDENT: LUDWIG C. CALDER	FDI - 25 - 801764

5. b. ☒ **Health insurance**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must maintain all existing health and medical insurance coverage for the other party, and that party must also maintain any minor children as named dependents, as long as that party is eligible to do so. If at any time during this period the ☒ petitioner ☐ respondent is not eligible to maintain that coverage, that party must, at his or her sole expense, provide and maintain health and medical insurance coverage that is comparable to the existing health and medical insurance coverage to the extent it is available.

If that coverage is not available, the ☒ petitioner ☐ respondent is responsible for paying the health and medical care for the other party and the minor children to the extent that care would have been covered by the existing insurance coverage but for the dissolution of marital status or domestic partnership, and will otherwise indemnify and hold the other party harmless from any adverse consequences resulting from the loss or reduction of the existing coverage. "Health and medical insurance coverage" includes any coverage under any group or individual health or other medical plan, fund, policy, or program.

c. ☒ **Probate homestead**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in a termination of the other party's right to a probate homestead in the residence in which the other party resides at the time the severance is granted.

d. ☒ **Probate family allowance**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the rights of the other party to a probate family allowance as the surviving spouse or surviving domestic partner.

e. ☒ **Retirement benefits**

Except for any retirement plan, fund, or arrangement identified in any order issued and attached as set out in paragraph 3, until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the other party's rights with respect to any retirement, survivor, or deferred compensation benefits under any plan, fund, or arrangement, or to any elections or options associated with them, to the extent that the other party would have been entitled to those benefits or elections as the spouse or surviving spouse or the domestic partner or surviving domestic partner of the moving party.

f. ☒ **Social security benefits**

The moving party must indemnify and hold the other party harmless from any adverse consequences if the bifurcation results in the loss of rights to social security benefits or elections to the extent the other party would have been entitled to those benefits or elections as the surviving spouse or surviving domestic partner of the moving party.

g. ☐ **Beneficiary designation - Nonprobate transfer**

Attachment 5(g), Order Re: Beneficiary Designation for Nonprobate Transfer Assets, will remain in effect for each covered asset until the division of any community interest therein has been completed.

h. ☐ **Individual Retirement Accounts**

Attachment 5(h), Order Re: Division of IRA Under Internal Revenue Code Section 408(d)(6), has been issued to preserve the ability of ☐ petitioner ☐ respondent to defer distribution of his or her community interest on the death of the IRA owner.

PETITIONER: ALENA E. CALDER RESPONDENT: LUDWIG C. CALDER	CASE NUMBER: FDI - 25 - 801764
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5. i. ☐ **Enforcement of community property rights**

Good cause exists to make additional orders as set out in Family Code section 2337(c)(9). See Attachment 5(i).

j. ☐ **Other conditions that are just and equitable**

Other:

6. Number of pages attached: 0

WARNING: *Judgment (Family Law)* (form FL-180) (status only) must be completed in addition to this form for the status of the marriage or domestic partnership to be ended.